

MERIDIAN INSURANCE GROUP, INC.
333 South Wacker Drive, Suite 2800 · Chicago, IL 60606
Claims Division: (800) 555-0174 · claims@meridianinsgroup.com

April 14, 2025

Katherine L. Fonseca, Esq.
Fonseca & Malik LLP
70 West Madison Street, Suite 1400
Chicago, Illinois 60602

Re: Claim Denial — Claimant: James Henderson
Insured: Swift Logistics LLC
Policy No.: CAP-IL-0072441
Claim No.: MIG-2025-IL-038841
Date of Loss: March 15, 2025

Dear Ms. Fonseca:

Meridian Insurance Group has completed its investigation of the above-referenced claim arising from the reported motor vehicle accident on March 15, 2025, on Interstate 90 in Chicago, Illinois. Following a review of available materials, Meridian denies this claim in its entirety for the reasons set forth below.

Basis for Denial

1. **Contributory Negligence of Claimant.** Our review of the incident data recorder (IDR) downloaded from Vehicle 2 (Toyota Camry, VIN 4T1C11AK9NU602741) indicates that the claimant's vehicle decelerated from 63 mph to 14 mph over a 4.2-second period immediately prior to impact. This abrupt deceleration, in a 60-mph construction zone, constitutes a failure to maintain a safe following distance and contributed materially to this accident.

2. **Navigation Device Use Is Not Distracted Driving Under Illinois Law.** Claimant's counsel references 625 ILCS 5/12-610.2 (Electronic Communication Device Use) as the legal basis for attributing fault to our insured. However, Section 12-610.2 expressly applies to 'electronic communication devices' used for 'voice communications.' A GPS/navigation application does not constitute an 'electronic communication device' under the plain language of the statute. Accordingly, our insured's use of a navigation tablet does not constitute a statutory violation.

3. **Pre-Existing Conditions.** Claimant's counsel has submitted MRI imaging purporting to show a herniated disc at L4-L5. Our independent medical consultant, Dr. Frank Bauer, M.D. (Board-Certified Orthopedic Surgery), reviewed the MRI and opines that the L4-L5 changes are consistent with age-related degenerative disc disease rather than acute traumatic herniation. Accordingly, we deny that the reported disc herniation is causally related to the March 15, 2025 accident.

Reservation of Rights

Meridian reserves all rights and defenses under Policy No. CAP-IL-0072441 and applicable Illinois law. This letter does not waive any policy defenses, whether or not specifically enumerated herein.

If you believe this determination is in error, you may submit additional medical documentation or legal authority within 30 days of the date of this letter. Please direct all further correspondence to our assigned claims examiner, Mr. Douglas Holt, at the address above.

Sincerely,

Douglas R. Holt
Senior Claims Examiner
Meridian Insurance Group, Inc.
Direct: (312) 555-0174 x2241
dholt@meridianinsgroup.com

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